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to enforce income tax laws. And using another person's Social Security number on tax forms threatens harm that has no connection with immigration law.

For instance, using another person's Social Security number on tax-withholding forms affects the wages reported to federal and state tax authorities. In addition, many benefits—such as those for disability, unemployment, and retirement—are tied to an individual's work status and income. Inaccurate data also affect the accuracy of a State's tax information.⁹

It is true that employees generally complete their W-4's and K-4's at roughly the same time as their I-9's, but IRCA plainly does not foreclose all state regulation of information that must be supplied as a precondition of employment. New employees may be required by law to provide all sorts of information that has nothing to do with authorization to work in the United States, such as information about age (for jobs with a minimum age requirement), educational degrees, licensing, criminal records, drug use, and personal information needed for a background check. IRCA surely does not preclude States from requiring and regulating the submission of all such information.

Respondents suggest that federal law precludes their prosecutions because both the Kansas identity-theft statute and the Kansas false-information statute require proof that the accused engaged in the prohibited conduct for the purpose of getting a "benefit." Their argument is as follows. Since the benefit alleged by the prosecution in these cases was getting a job, and since the employment verification system concerns authorization to work, the theory of respondents' prosecutions is related to that system.

This argument conflates the benefit that results from complying with the federal employment verification system (ver-

⁹See, *e.g.*, Kansas Dept. of Revenue, Annual Reports, www.ksrevenue.org/prannualreport.html; Kansas Dept. of Revenue, Tax Fraud Enforcement, www.ksrevenue.org/taxfraud.html.

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ifying authorization to work in the United States) with the benefit of actually getting a job. Submitting W-4's and K-4's helped respondents get jobs, but this did not in any way assist them in showing that they were authorized to work in this country. Thus, respondents' "relating to" argument must be rejected, as must the even broader definitions of the putatively preempted field advanced by respondents at earlier points in this litigation.

Contrary to respondents' suggestion, IRCA certainly does not bar all state regulation regarding the "use of false documents . . . when an unauthorized alien seeks employment." Brief in Opposition 21. Nor does IRCA exclude a State from the entire "field of employment verification." *Id.*, at 22. For example, IRCA certainly does not prohibit a public school system from requiring applicants for teaching positions to furnish legitimate teaching certificates. And it does not prevent a police department from verifying that a prospective officer does not have a record of abusive behavior.

Respondents argue that field preemption in these cases "follows directly" from our decision in *Arizona*, 567 U. S. 387, Brief for Respondents 45–46, but that is not so. In *Arizona*, relying on our prior decision in *Hines v. Davidowitz*, 312 U. S. 52 (1941), we held that federal immigration law occupied the field of alien registration. 567 U. S., at 400–402. "Federal law," we observed, "makes a single sovereign responsible for maintaining a comprehensive and unified system to keep track of aliens within the Nation's borders." *Id.*, at 401–402. But federal law does not create a comprehensive and unified system regarding the information that a State may require employees to provide.

In sum, there is no basis for finding field preemption in these cases.

B

We likewise see no ground for holding that the Kansas statutes at issue conflict with federal law. It is certainly

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possible to comply with both IRCA and the Kansas statutes, and respondents do not suggest otherwise. They instead maintain that the Kansas statutes, as applied in their prosecutions, stand as “an obstacle to the accomplishment and execution of the full purposes” of IRCA—one of which is purportedly that the initiation of any legal action against an unauthorized alien for using a false identity in applying for employment should rest exclusively within the prosecutorial discretion of federal authorities. Brief for Respondents 49–55. Allowing Kansas to bring prosecutions like these, according to respondents, would risk upsetting federal enforcement priorities and frustrating federal objectives, such as obtaining the cooperation of unauthorized aliens in making bigger cases. *Ibid.*

Respondents analogize these cases to our holding in *Arizona*, 567 U. S., at 404–407—that a state law making it a crime for an unauthorized alien to obtain employment conflicted with IRCA, which does not criminalize that conduct—but respondents’ analogy is unsound. In *Arizona*, the Court inferred that Congress had made a considered decision that it was inadvisable to criminalize the conduct in question. In effect, the Court concluded that IRCA implicitly conferred a right to be free of criminal (as opposed to civil) penalties for working illegally, and thus a state law making it a crime to engage in that conduct conflicted with this federal right.

Nothing similar is involved here. In enacting IRCA, Congress did not decide that an unauthorized alien who uses a false identity on tax-withholding forms should not face criminal prosecution. On the contrary, federal law makes it a crime to use fraudulent information on a W–4. 26 U. S. C. § 7205.

The mere fact that state laws like the Kansas provisions at issue overlap to some degree with federal criminal provisions does not even begin to make a case for conflict preemp-

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tion. From the beginning of our country, criminal law enforcement has been primarily a responsibility of the States, and that remains true today. In recent times, the reach of federal criminal law has expanded, and there are now many instances in which a prosecution for a particular course of conduct could be brought by either federal or state prosecutors. Our federal system would be turned upside down if we were to hold that federal criminal law preempts state law whenever they overlap, and there is no basis for inferring that federal criminal statutes preempt state laws whenever they overlap. Indeed, in the vast majority of cases where federal and state laws overlap, allowing the States to prosecute is entirely consistent with federal interests.

In the present cases, there is certainly no suggestion that the Kansas prosecutions frustrated any federal interests. Federal authorities played a role in all three cases, and the Federal Government fully supports Kansas's position in this Court. In the end, however, the possibility that federal enforcement priorities might be upset is not enough to provide a basis for preemption. The Supremacy Clause gives priority to "the Laws of the United States," not the criminal law enforcement priorities or preferences of federal officers. Art. VI, cl. 2.

Finally, contrary to respondents' suggestion, these cases are very different from *Buckman Co. v. Plaintiffs' Legal Comm.*, 531 U. S. 341 (2001), and *Wisconsin Dept. of Industry v. Gould Inc.*, 475 U. S. 282 (1986). In *Buckman Co.*, the preempted state tort claim for fraud on the Food and Drug Administration threatened serious disruption of the sensitive and highly technical process of approving medical devices. 531 U. S., at 347–353. In these cases, the state prosecutions posed no comparable risk.

In *Gould*, the decision rested on a special preemption rule governing state laws regulating matters that the National Labor Relations Act "protects, prohibits, or arguably protects." 475 U. S., at 286–289; *San Diego Building Trades*

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Council v. Garmon, 359 U.S. 236, 246 (1959). No similar rule is operative or appropriate here.

* * *

For these reasons, the judgments of the Supreme Court of Kansas are reversed, and these cases are remanded for further proceedings not inconsistent with this opinion.

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

I agree that Kansas’ prosecutions and convictions of respondents for identity theft and making false information are not pre-empted by § 101(a)(1) of the Immigration Reform and Control Act of 1986, 8 U.S.C. § 1324a. I write separately to reiterate my view that we should explicitly abandon our “purposes and objectives” pre-emption jurisprudence.

The founding generation treated conflicts between federal and state laws as implied repeals. *PLIVA, Inc. v. Mensing*, 564 U.S. 604, 622 (2011) (plurality opinion). Then, as now, courts disfavored repeals by implication. See, e.g., *Warder v. Arell*, 2 Va. 282, 299 (1796) (opinion of President Judge); 2 T. Cunningham, *A New and Complete Law-Dictionary* (2d ed. 1771) (defining “Statute”); 4 M. Bacon, *A New Abridgment of the Law* 638 (3d ed. 1768). To overcome this disfavor, legislatures included *non obstante* clauses in statutes. See Nelson, *Preemption*, 86 Va. L. Rev. 225, 237–240, and nn. 42–44 (2000) (collecting examples). Courts understood *non obstante* provisions to mean that, “[r]ather than straining the new statute in order to harmonize it with prior law, [they] were supposed to give the new statute its natural meaning and to let the chips fall where they may.” *Id.*, at 242.

The Founders included a *non obstante* provision in the Supremacy Clause. It directs that “the Judges in every

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State shall be bound” by the “Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties made, or which shall be made, under the Authority of the United States, . . . any Thing in the Constitution or Laws of any state to the Contrary notwithstanding.” Art. VI, cl. 2. If we interpret the Supremacy Clause as the founding generation did, our task is straightforward. We must use the accepted methods of interpretation to ascertain whether the ordinary meaning of federal and state law “directly conflict.” *Wyeth v. Levine*, 555 U. S. 555, 590 (2009) (THOMAS, J., concurring in judgment). “[F]ederal law pre-empts state law only if the two are in logical contradiction.” *Merck Sharp & Dohme Corp. v. Albrecht*, 587 U. S. 299, 319 (2019) (THOMAS, J., concurring); see also Nelson, *supra*, at 236–237.

The doctrine of “purposes and objectives” pre-emption impermissibly rests on judicial guesswork about “broad federal policy objectives, legislative history, or generalized notions of congressional purposes that are not contained within the text of federal law.” *Wyeth*, *supra*, at 587 (opinion of THOMAS, J.); see also *Arizona v. United States*, 567 U. S. 387, 440 (2012) (THOMAS, J., concurring in part and dissenting in part). I therefore cannot apply “purposes and objectives” pre-emption doctrine, as it is contrary to the Supremacy Clause.*

In these cases, the Court correctly distinguishes our “purposes and objectives” precedents and does not engage in a “freewheeling judicial inquiry into whether a state statute

*I am also skeptical of field pre-emption, “at least as applied in the absence of a congressional command that a particular field be pre-empted.” *Camps Newfound/Owatonna, Inc. v. Town of Harrison*, 520 U. S. 564, 617 (1997) (THOMAS, J., dissenting). For today, however, it suffices to say that the Court correctly applies our field pre-emption precedents and that “nothing in the text of the relevant federal statutes indicates that Congress intended” to pre-empt a pertinent field. *Arizona*, 567 U. S., at 439 (opinion of THOMAS, J.).

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is in tension with federal objectives.’” *Wyeth, supra*, at 588 (opinion of THOMAS, J.) (quoting *Bates v. Dow Agrosciences LLC*, 544 U. S. 431, 459 (2005) (THOMAS, J., concurring in judgment in part and dissenting in part)). It also acknowledges that “[t]he Supremacy Clause gives priority to ‘the laws of the United States,’ not the criminal law enforcement priorities or preferences of federal officers.” *Ante*, at 212. Because the Court rejects respondents’ “purposes and objectives” argument without atextual speculation about legislative intentions, I join its opinion in full.

JUSTICE BREYER, with whom JUSTICE GINSBURG, JUSTICE SOTOMAYOR, and JUSTICE KAGAN join, concurring in part and dissenting in part.

I agree with the majority that nothing in the Immigration Reform and Control Act of 1986 (IRCA), 100 Stat. 3359, expressly preempts Kansas’ criminal laws as they were applied in the prosecutions at issue here. But I do not agree with the majority’s conclusion about implied preemption.

When we confront a question of implied preemption, the words of the statute are especially unlikely to determine the answer by themselves. Nonetheless, in my view, IRCA’s text, together with its structure, context, and purpose, make it “‘clear and manifest’” that Congress has occupied at least the narrow field of policing fraud committed to demonstrate federal work authorization. *Arizona v. United States*, 567 U. S. 387, 400 (2012) (quoting *Rice v. Santa Fe Elevator Corp.*, 331 U. S. 218, 230 (1947)); see Brief for United States as *Amicus Curiae* in *Puente Arizona v. Arpaio*, No. 15–15211 etc. (CA9), p. 15 (contending that the Act preempts state criminal laws “to the extent they regulate fraud committed to demonstrate authorization to work in the United States under federal immigration law”); Tr. of Oral Arg. 22–23 (standing by the Government’s position in *Puente Arizona*). That is to say, the Act reserves to the Federal Government—and thus takes from the States—the power to

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prosecute people for misrepresenting material information in an effort to convince their employer that they are authorized to work in this country.

The Act creates what we have called “a comprehensive scheme” to “comba[t] the employment of illegal aliens.” *Hoffman Plastic Compounds, Inc. v. NLRB*, 535 U. S. 137, 147 (2002). To that end, the statute’s text sets forth highly detailed requirements. The Act specifies, for example: that employers and employees must affirm in writing that the employee is authorized to work in the United States, 8 U. S. C. §§ 1324a(b)(1)(A), (b)(2); that only certain documents suffice to demonstrate identity and work authorization (*e. g.*, a passport or alien-registration card), §§ 1324a(b)(1)(B)–(D); that employers and employees must affirm the truthfulness of the information they have given by “a hand-written or an electronic signature,” §§ 1324a(b)(1)(A), (b)(2); that all this information must be consolidated on the I–9 form, *ibid.*; that the employer must store the I–9 in “paper, microfiche, microfilm, or electronic” form, typically for three years, § 1324a(b)(3); and that employers must make it available for federal inspection, *ibid.*

IRCA also contains two carefully calibrated sets of sanctions for noncompliance. On the employer side, the Act makes it unlawful for employers to hire someone without complying with the I–9 process, § 1324a(a)(1)(B), or to recruit, hire, or employ someone the employer knows to be unauthorized, §§ 1324a(a)(1)(A), (a)(2). The Act subjects employers who violate these prohibitions to an escalating series of civil and criminal penalties. See §§ 1324a(e)(4)–(5), (f). It also expressly “preempt[s] any State or local law imposing civil or criminal sanctions” on those employers, but with a saving clause that gives States some room to regulate employers (and only employers) in this area “through licensing and similar laws.” § 1324a(h)(2); see also *Chamber of Commerce of United States of America v. Whiting*, 563 U. S. 582, 587 (2011).

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On the employee side, IRCA is somewhat more lenient. Employees, unlike employers, are not subject to punishment for mere failure to complete the paperwork that the Act requires. See § 1324a(e)(5). And while employees who work without authorization may suffer adverse immigration consequences, unauthorized work does not by itself trigger federal criminal prosecution. See *Arizona*, 567 U. S., at 404–405 (citing §§ 1227(a)(1)(C)(i), 1255(c)(2), (c)(8)). Rather, the Act makes it a federal crime for anyone to commit fraud “for the purpose of satisfying” the Act’s requirements. 18 U. S. C. § 1546(b).

Our precedent demonstrates that IRCA impliedly preempts state laws that trench on Congress’ detailed and delicate design. In *Arizona*, we invalidated a state law that made it a crime for an unauthorized alien to work. 567 U. S., at 403. In reaching that conclusion, we acknowledged that the Act’s employer-related sections contain an express preemption provision, while the employee-related provisions do not. *Id.*, at 406. Even so, the Act’s employee-related provisions retained, through implication, preemptive force. *Id.*, at 406–407.

Congress, we explained, “made a deliberate choice not to impose criminal penalties on aliens who” merely “seek, or engage in, unauthorized employment.” *Id.*, at 405. The Act puts combating the employment of unauthorized aliens at the forefront of federal immigration policy. *Id.*, at 404. But it also reflects “a considered judgment” not to pursue that goal at all costs. *Id.*, at 405. “Unauthorized workers trying to support their families” usually “pose less danger than alien smugglers or aliens who commit a serious crime.” *Id.*, at 396. And they may have “children born in the United States, long ties to the community,” or other attributes that could counsel in favor of prosecutorial restraint. *Ibid.*

We ultimately held in *Arizona* that the States thus may not make criminal what Congress did not, for any such state law “would interfere with the careful balance struck by Con-

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gress with respect to unauthorized employment of aliens.” *Id.*, at 406. Given that “obstacle to the regulatory system Congress chose,” we concluded that the state law at issue conflicted with the federal Act and was therefore preempted. *Id.*, at 406–407.

State laws that police fraud committed to demonstrate federal work authorization are similarly preempted. Even though IRCA criminalizes that conduct, the Act makes clear that only the Federal Government may prosecute people for misrepresenting their federal work-authorization status. This is so for two reasons.

First, the Act takes from the States the most direct means of policing work-authorization fraud. It prohibits States from using for that purpose both the I–9 and the federal employment verification system more generally. See 8 U. S. C. §§ 1324a(b)(5), (d)(2)(F). Those two provisions strongly suggest that the Act occupies the field of policing fraud committed to demonstrate federal work authorization. Otherwise, their express prohibitions would not constrain the States in any meaningful way. States could evade the Act simply by creating their own work-authorization form with the same requirements as the I–9, requiring employees to submit that form at the same time as the I–9, and prosecuting employees who make misrepresentations on the state form. No one contends that the States may do *that*.

Second, consider another part of our decision in *Arizona*. We also addressed in that case a different federal statute, one establishing a federal alien-registration system. See 567 U. S., at 400–403. Pointing to that statute’s “full set of standards governing alien registration, including the punishment for noncompliance,” we concluded that Congress had enacted “a comprehensive and unified system to keep track of aliens within the Nation’s borders.” *Id.*, at 401–402. The statute therefore left no room for a state law designed to police violations of the federal alien-registration system. Similarly, IRCA’s intricate procedures and penalties create

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a comprehensive and unified system to keep track of who is authorized to work within the Nation's borders. See *supra*, at 216–217. This too shows that criminal enforcement falls to the Federal Government alone.

Nor does it matter that the state statutes invalidated in *Arizona* had expressly targeted aliens. In preemption cases, we must consider not just what a state law says, but also what it does. *Wos v. E. M. A.*, 568 U. S. 627, 637 (2013). For this reason, even generally applicable and facially neutral state laws may be preempted when applied in a particular factual context in a particular way. See, e. g., *Buckman Co. v. Plaintiffs' Legal Comm.*, 531 U. S. 341, 347–350 (2001) (rejecting claims grounded in generally applicable state-law principles because they were based on a preempted theory of liability); *Northwest, Inc. v. Ginsberg*, 572 U. S. 273, 289 (2014) (similar). And here, Kansas applied its criminal laws to do what IRCA reserves to the Federal Government alone—police fraud committed to demonstrate federal work authorization. That is true even though Kansas prosecuted respondents based on their tax-withholding forms, rather than their I–9s.

Take Donaldo Morales, for example. Kansas charged him under two state antifraud statutes. Both required the State to prove, as an element, an intent to defraud. See Kan. Stat. Ann. §§21–5824(a), 21–6107(a)(1) (2018 Cum. Supp.). Kansas law defines “intent to defraud” as the “intention to deceive another person, and to induce such other person, in reliance upon such deception, to” transfer a property right. §21–5111(o). Kansas’ theory of guilt was that Morales intended to deceive his employer about his federal work-authorization status so that his employer, in reliance upon that deception, would give him a job. At trial, the State elicited testimony that employees needed “proof of eligibility to work in the United States.” App. 149. It then argued that Morales knew people like him had to use a false Social Security number to get a job because of “how they were

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here.” *Id.*, at 176. The trial court, sitting as the finder of fact, confirmed how it understood the reliance that Morales induced: Morales convinced his employer that he was “a legal citizen,” even though he was in truth “undocumented.” *Id.*, at 179–181.

On different facts, there would have been no preemption. Had Kansas proved instead that Morales used a false Social Security number on his tax-withholding forms to induce another sort of reliance (*e. g.*, to hide a criminal history), or perhaps to obtain another kind of benefit (*e. g.*, to pay less in taxes), IRCA would permit the prosecution. But that is not what Kansas did. What Kansas did was prosecute Morales for misrepresenting his federal work-authorization status for the purpose of obtaining employment. Kansas’ prosecution of Morales thus fell squarely within the field that, in my view, the federal Act preempts.

By permitting these prosecutions, the majority opens a colossal loophole. Starting a new job almost always involves filling out tax-withholding forms alongside an I–9. So unless they want to give themselves away, people hoping to hide their federal work-authorization status from their employer will put the same false information on their tax-withholding forms as they do on their I–9. To let the States prosecute such people for the former is, in practical effect, to let the States police the latter. And policing the latter is what the Act expressly forbids.

For these reasons, I would hold that federal law impliedly preempted Kansas’ criminal laws as they were applied in these cases. Because the majority takes a different view, with respect, I dissent.

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GUERRERO-LASPRILLA *v.* BARR, ATTORNEY
GENERALCERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FIFTH CIRCUIT

No. 18–776. Argued December 9, 2019—Decided March 23, 2020*

The Immigration and Nationality Act provides for judicial review of a final Government order directing the removal of an alien from this country. 8 U. S. C. § 1252(a). Section 1252(a)(2)(C) limits the scope of that review where the removal rests upon the fact that the alien has committed certain crimes. And § 1252(a)(2)(D), the Limited Review Provision, says that in such instances courts may consider only “constitutional claims or questions of law.”

Petitioners Guerrero-Lasprilla and Ovalles, aliens who lived in the United States, committed drug crimes and were subsequently ordered removed (Guerrero-Lasprilla in 1998 and Ovalles in 2004). Neither filed a motion to reopen his removal proceedings “within 90 days of the date of entry of [the] final administrative order of removal.” § 1229a(c)(7)(C)(i). Nonetheless, Guerrero-Lasprilla (in 2016) and Ovalles (in 2017) asked the Board of Immigration Appeals to reopen their removal proceedings, arguing that the 90-day time limit should be equitably tolled. Both petitioners, who had become eligible for discretionary relief due to various judicial and Board decisions years after their removal, rested their claim for equitable tolling on *Lugo-Resendez v. Lynch*, 831 F. 3d 337, in which the Fifth Circuit had held that the 90-day time limit could be equitably tolled. The Board denied both petitioners’ requests, concluding, *inter alia*, that they had not demonstrated the requisite due diligence. The Fifth Circuit denied their requests for review, holding that, given the Limited Review Provision, it “lack[ed] jurisdiction” to review petitioners’ “factual” due diligence claims. Petitioners contend that whether the Board incorrectly applied the equitable tolling due diligence standard to the undisputed facts of their cases is a “question of law” that the Provision authorizes courts of appeals to consider.

Held: Because the Provision’s phrase “questions of law” includes the application of a legal standard to undisputed or established facts, the Fifth

*Together with No. 18–1015, *Ovalles v. Barr, Attorney General*, also on certiorari to the same court.

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Circuit erred in holding that it had no jurisdiction to consider petitioners' claims of due diligence for equitable tolling purposes. Pp. 227–236.

(a) Nothing in the statute's language precludes the conclusion that Congress used the term "questions of law" to refer to the application of a legal standard to settled facts. Indeed, this Court has at times referred to the question whether a given set of facts meets a particular legal standard as presenting a legal inquiry. See *Neitzke v. Williams*, 490 U. S. 319, 326 ("Rule 12(b)(6) authorizes a court to dismiss a claim on the basis of a dispositive issue of law"); *Mitchell v. Forsyth*, 472 U. S. 511, 528, n. 9 ("[T]he appealable issue is a purely legal one: whether the facts alleged . . . support a claim of violation of clearly established law"); cf. *Nelson v. Montgomery Ward & Co.*, 312 U. S. 373, 376 ("The effect of admitted facts is a question of law"). That judicial usage indicates that the statutory term "questions of law" can reasonably encompass questions about whether settled facts satisfy a legal standard. The Court has sometimes referred to such a question as a "mixed question of law and fact." See, e. g., *U. S. Bank N. A. v. Village at Lakeridge, LLC*, 583 U. S. 387, 394. And the Court has often used the phrase "mixed questions" in determining the proper standard for appellate review of a district, bankruptcy, or agency decision that applies a legal standard to underlying facts. But these cases present no such question involving the standard of review. And, in any event, nothing in those cases, nor in the language of the statute, suggests that the statutory phrase "questions of law" excludes the application of law to settled facts. Pp. 227–228.

(b) A longstanding presumption, the statutory context, and the statute's history all support the conclusion that the application of law to undisputed or established facts is a "questio[n] of law" within the meaning of § 1252(a)(2)(D). Pp. 228–234.

(1) A "well-settled" and "strong presumption," *McNary v. Haitian Refugee Center, Inc.*, 498 U. S. 479, 496, 498, "favor[s] judicial review of administrative action," *Kucana v. Holder*, 558 U. S. 233, 251. That presumption, which can only be overcome by "'clear and convincing evidence'" of congressional intent to preclude judicial review, *Reno v. Catholic Social Services, Inc.*, 509 U. S. 43, 64, has consistently been applied to immigration statutes, *Kucana*, 558 U. S., at 251. And there is no reason to make an exception here. Because the Court can reasonably interpret the statutory term "questions of law" to encompass the application of law to undisputed facts, and given that a contrary interpretation would result in a barrier to meaningful judicial review, the presumption indicates that "questions of law" does indeed include mixed questions. Pp. 229–230.

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(2) The Limited Review Provision’s immediate statutory context belies the Government and the dissent’s claim that “questions of law” excludes the application of law to settled facts. The Provision is part of § 1252, which also contains § 1252(b)(9), the “zipper clause.” The zipper clause is meant to “consolidate ‘judicial review’ of immigration proceedings into one action in the court of appeals.” *INS v. St. Cyr*, 533 U. S. 289, 313. The zipper clause’s language makes clear that Congress understood the statutory term “questions of law and fact” to include the application of law to facts. One interpretation of the zipper clause at the very least disproves the Government’s argument that Congress consistently uses a three-part typology, such that “questions of law” cannot include mixed questions. And another interpretation—that “questions of law” in the zipper clause includes mixed questions—directly supports the holding here and would give the term the same meaning in the zipper clause and the Limited Review Provision. Pp. 230–231.

(3) The Provision’s statutory history and relevant precedent also support this conclusion. The Provision was enacted in response to *INS v. St. Cyr*, in which the Court interpreted the predecessor of § 1252(a)(2)(C) to permit habeas corpus review in order to avoid the serious constitutional questions that would arise from a contrary interpretation, 533 U. S., at 299–305, 314. In doing so, the Court suggested that the Constitution, at a minimum, protected the writ of habeas corpus “as it existed in 1789.” *Id.*, at 300–301. The Court then noted the kinds of review that were traditionally available in a habeas proceeding, which included “detentions based on errors of law, including the erroneous *application* or interpretation of statutes.” *Id.*, at 302 (emphasis added). Congress took up the Court’s invitation to “provide an adequate substitute [for habeas review] through the courts of appeals,” *id.*, at 314, n. 38. It made clear that the limits on judicial review in various § 1252 provisions included habeas review, and it consolidated virtually all review of removal orders in one proceeding in the courts of appeals. Congress also added the Limited Review Provision, permitting review of “constitutional claims or questions of law.” Congress did so, the statutory history strongly suggests, because it sought an “adequate substitute” for habeas in view of *St. Cyr*’s guidance. If “questions of law” in the Provision does not include the misapplication of a legal standard to undisputed facts, then review would not include an element that *St. Cyr* said was traditionally reviewable in habeas. Lower court precedent citing *St. Cyr* and legislative history also support this conclusion. Pp. 231–234.

(c) The Government’s additional arguments in favor of its contrary reading are unpersuasive. More than that, the Government’s interpre-

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tation is itself difficult to reconcile with the Provision's basic purpose of providing an adequate substitute for habeas review. Pp. 234–236.

No. 18–776, 737 Fed. Appx. 230; No. 18–1015, 741 Fed. Appx. 259, vacated and remanded.

BREYER, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a dissenting opinion, in which ALITO, J., joined as to all but Part II–A–1, *post*, p. 236.

Paul W. Hughes argued the cause for petitioners. With him on the briefs were *Michael B. Kimberly*, *Ethan H. Townsend*, *Mark Andrew Prada*, *Mario R. Urizar*, *Eugene R. Fidell*, *Andrew J. Pincus*, *Charles A. Rothfeld*, and *Brian Wolfman*.

Frederick Liu argued the cause for respondent. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Solicitor General Kneedler*, *Donald E. Keener*, *John W. Blakeley*, and *W. Manning Evans*.[†]

JUSTICE BREYER delivered the opinion of the Court.

Section 242(a) of the Immigration and Nationality Act, codified as 8 U. S. C. § 1252(a), provides for judicial review of a final Government order directing the removal of an alien from this country. See 66 Stat. 163, as amended, 8 U. S. C. § 1101 *et seq.* A subdivision of that section limits the scope of that review where the removal rests upon the fact that the alien has committed certain crimes, including aggravated felonies and controlled substance offenses. § 1252(a)(2)(C).

[†]Briefs of *amici curiae* urging reversal were filed for the American Civil Liberties Union Foundation by *Jennifer B. Sokoler*, *Cody Wofsy*, *Lee Gelernt*, *Omar C. Jadwat*, and *David Cole*; for the American Immigration Counsel et al. by *Trina Realmuto*, *Kristin Macleod-Ball*, *Emma Winger*, and *Mark C. Fleming*; and for Scholars of Habeas Corpus Law by *Lucas Guttentag*, *Joshua S. Lipshutz*, *Jesenska Mrdjenovic*, and *Shannon Han*.

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Another subdivision, § 1252(a)(2)(D), which we shall call the Limited Review Provision, says that in such instances courts may consider only “constitutional claims or questions of law.” The question that these two consolidated cases present is whether the phrase “questions of law” in the Provision includes the application of a legal standard to undisputed or established facts. We believe that it does.

I

The two petitioners before us, Pedro Pablo Guerrero-Lasprilla and Ruben Ovalles, are aliens who lived in the United States. Each committed a drug crime and consequently became removable. App. 33; Record in No. 18–1015, p. 66. In 1998, an Immigration Judge ordered Guerrero-Lasprilla removed. Record in No. 18–776, p. 137. In 2004, the Board of Immigration Appeals ordered Ovalles removed, reversing a decision by an Immigration Judge. App. to Pet. for Cert. in No. 18–1015, pp. 32a–35a. Both removal orders became administratively final, and both petitioners left the country.

Several months after their removal orders became final, each petitioner’s window for filing a timely motion to reopen his removal proceedings closed. That is because the Immigration and Nationality Act permits a person one motion to reopen, “a form of procedural relief that asks the Board to change its decision in light of newly discovered evidence or a change in circumstances.” *Dada v. Mukasey*, 554 U. S. 1, 12, 14 (2008) (internal quotation marks omitted). But the motion must usually be filed “within 90 days of the date of entry of a final administrative order of removal.” 8 U. S. C. § 1229a(c)(7)(C)(i).

Nonetheless, Guerrero-Lasprilla (in 2016) and Ovalles (in 2017) asked the Board to reopen their removal proceedings. Recognizing that the 90-day time limit had long since passed, both petitioners argued that the time limit should be equita-

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bly tolled. Both petitioners, who had become eligible for discretionary relief due to various judicial and Board decisions years after their removal, rested their claim for equitable tolling on *Lugo-Resendez v. Lynch*, 831 F. 3d 337 (CA5 2016). In that case, the Fifth Circuit had held that the 90-day time limit could be “equitably tolled.” *Id.*, at 344. Guerrero-Lasprilla filed his motion to reopen a month after *Lugo-Resendez* was decided. App. 5. Ovalles filed his motion to reopen eight months after the decision. *Id.*, at 35. The Board denied both petitioners’ requests for equitable tolling, concluding, *inter alia*, that they had failed to demonstrate the requisite due diligence. App. to Pet. for Cert. in No. 18–1015, at 6a; App. to Pet. for Cert. in No. 18–776, p. 12a.

Guerrero-Lasprilla and Ovalles each asked the Fifth Circuit to review the Board’s decision. See 8 U.S.C. § 1252(a)(1); 28 U.S.C. § 2342; *Reyes Mata v. Lynch*, 576 U.S. 143, 147 (2015) (“[C]ircuit courts have jurisdiction when an alien appeals from the Board’s denial of a motion to reopen a removal proceeding”). The Fifth Circuit denied their requests for review, concluding in both cases that “whether an alien acted diligently in attempting to reopen removal proceedings for purposes of equitable tolling is a factual question.” *Guerrero-Lasprilla v. Sessions*, 737 Fed. Appx. 230, 231 (2018) (*per curiam*); *Ovalles v. Sessions*, 741 Fed. Appx. 259, 261 (2018) (*per curiam*). And, given the Limited Review Provision, it “lack[ed] jurisdiction” to review those “factual” claims. 737 Fed. Appx., at 231; 741 Fed. Appx., at 261.

Both petitioners claim that the underlying facts were not in dispute, and they asked us to grant certiorari in order to determine whether their claims that the Board incorrectly applied the equitable tolling due diligence standard to the “undisputed” (or established) facts is a “question of law,” which the Limited Review Provision authorizes courts of appeals to consider. We agreed to do so.

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II

The Limited Review Provision provides that, in this kind of immigration case (involving aliens who are removable for having committed certain crimes), a court of appeals may consider only “constitutional claims or questions of law.” 8 U.S.C. § 1252(a)(2)(D). The issue before us is, as we have said, whether the statutory phrase “questions of law” includes the application of a legal standard to undisputed or established facts. If so, the Fifth Circuit erred in holding that it “lack[ed] jurisdiction” to consider the petitioners’ claims of due diligence for equitable tolling purposes. We conclude that the phrase “questions of law” does include this type of review, and the Court of Appeals was wrong to hold the contrary.

A

Consider the statute’s language. Nothing in that language precludes the conclusion that Congress used the term “questions of law” to refer to the application of a legal standard to settled facts. Indeed, we have at times referred to the question whether a given set of facts meets a particular legal standard as presenting a legal inquiry. Do the facts alleged in a complaint, taken as true, state a claim for relief under the applicable legal standard? See Fed. Rule Civ. Proc. 12(b)(6); *Neitzke v. Williams*, 490 U.S. 319, 326 (1989) (“Rule 12(b)(6) authorizes a court to dismiss a claim on the basis of a dispositive issue of law”). Did a Government official’s alleged conduct violate clearly established law? See *Mitchell v. Forsyth*, 472 U.S. 511, 528, n. 9 (1985) (“[T]he appealable issue is a purely legal one: whether the facts alleged . . . support a claim of violation of clearly established law”); cf. *Nelson v. Montgomery Ward & Co.*, 312 U.S. 373, 376 (1941) (“The effect of admitted facts is a question of law”). Even the dissent concedes that we have sometimes referred to mixed questions as raising a legal inquiry. See *post*, at 239 (opinion of THOMAS, J.). While that judicial

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usage alone does not tell us what Congress meant by the statutory term “questions of law,” it does indicate that the term can reasonably encompass questions about whether settled facts satisfy a legal standard.

We have sometimes referred to such a question, which has both factual and legal elements, as a “mixed question of law and fact.” See, *e.g.*, *U. S. Bank N. A. v. Village at Lakeridge, LLC*, 583 U. S. 387, 394 (2018) (“[W]hether the historical facts found satisfy the legal test chosen” is a “so-called ‘mixed question’ of law and fact” (citing *Pullman-Standard v. Swint*, 456 U. S. 273, 289, n. 19 (1982))). And we have often used the phrase “mixed questions” in determining the proper standard for appellate review of a district, bankruptcy, or agency decision that applies a legal standard to underlying facts. The answer to the “proper standard” question may turn on practical considerations, such as whether the question primarily “require[s] courts to expound on the law, particularly by amplifying or elaborating on a broad legal standard” (often calling for review *de novo*), or rather “immerse[s] courts in case-specific factual issues” (often calling for deferential review). *Village at Lakeridge*, 583 U. S., at 396. But these cases present no such question involving the standard of review. And, in any event, nothing in those cases forecloses the conclusion that the application of law to settled facts can be encompassed within the statutory phrase “questions of law.” Nor is there anything in the language of the statute that suggests that “questions of law” excludes the application of law to settled facts.

B

The Government, respondent here, argues to the contrary. Namely, the Government claims that Congress intended to exclude from judicial review all mixed questions. We do not agree. Rather, a longstanding presumption, the statutory context, and the statute’s history all support the conclusion that the application of law to undisputed or established facts is a “questio[n] of law” within the meaning of § 1252(a)(2)(D).